
**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**RULINGS AND ORDERS ON
CLASSIFICATION AND CLOSURE
MOTIONS**

Case No. 251403576
Judge Tony F. Graf, Jr.

Before the court are three motions to classify court records: Defendant's Motion to Classify as Private Motion Filed Jan 9 with Exhibits (dkt. 285); Defendant's Motion to Classify Motion to Exclude (dkt. 310); and Defendant's Motion to Classify Reply in Support of Motion to Exclude (dkt. 400).¹

The public has a presumptive right to access court records. *See* Utah R. Jud. Admin. 4-202.02(1); *see also State v. Allgier*, 2011 UT 47, ¶ 14. Open court records assist in educating the public about the workings of government and the decisions being made on the public's behalf; contribute to informed debate, allow the public to hold public officers and employees accountable, increase public confidence, and provide material for independent research on improving government policy. *See* Utah R. Jud. Admin. 4-201(1).

The right of access, however, "is not absolute." *Allgier*, 2011 UT 47, ¶ 14. Other factors may favor closure of records, such as protecting personal privacy, non-parties participating in the court process, and a defendant's right to a fair trial. *See* Utah R. Jud. Admin. 4-202(2); *State v.*

¹ The Media has filed a request to submit on its Motion to Classify Supplemental Memorandum Opposing Motion to Classify Defendant's Motion Filed January 9, 2026 (Dkts. 436, 440). The Media represents that the court may act on its motion without waiting for a response under Rule 7(l)(1)(G). The court is unconvinced that a motion to classify is a motion that can be acted on without waiting for a response. And while the Media has standing to oppose motions to classify a record, it is not clear to the court that the Media has standing to file motions in the case.

Allgier, 2011 UT 47, ¶ 19. A court may consider “any relevant factor, interest, or policy” both in favor of and opposed to closure in determining whether to classify or close all or part of a court record. Utah R. Jud. Admin. 4-202.04(6). In making its determination, a court must make findings and conclusions about specific court records; identify and balance the interests favoring opening and closing the record and, if the record is ordered closed, “determine there are no reasonable alternatives to closure sufficient to protect the interests favoring closure.” Utah R. Jud. Admin. 4-202.04(6). With this legal framework in mind, the court now turns to the pending motions to classify.

1. Defendant’s Motion to Classify as Private Motion Filed Jan 9 with Exhibits (Dkt. 285)

Defendant seeks to classify a motion he filed on January 9, 2026, as private because it “addresses evidence that has not yet been found to be admissible and is of a nature that it could easily taint potential jurors.” Def.’s Mot. at 2. If the court denies his motion to classify, Defendant requests an opportunity to file a public version of the motion that redacts the attached exhibit and details from the exhibit discussed in the motion.

Defendant does not provide any specificity explaining why the potential evidence discussed in the underlying motion is of such a nature that its disclosure could taint the jury pool. The potential evidence discussed in the motion is technical and discusses the process of scientific and forensic testing of physical evidence. It does not contain any obvious private or inflammatory information. And while the evidence has not been admitted at trial, there is no pending motion to exclude it.

In balance, Defendant has not provided a sufficient basis for the court to find that the interests favoring closure outweigh the interests favoring an open proceeding and the

presumptive right to access. Moreover, as the Utah Supreme Court recognized, even in highly publicized cases, a defendant's right to a fair trial can be protected "through the regular, time-honored processes for selecting jurors" like enlarging the venire of potential jurors, utilizing a detailed juror questionnaire, and conducting a thorough voir dire of potential jurors. Id. ¶

Defendant's request to classify the motion filed on January 9, 2026, is respectfully denied.

2. Motion to Classify Motion to Exclude (Dkt. 310)

Defendant seeks to classify his motion to exclude cameras from the courtroom because the motion compiles a "litany of unfairly prejudicial and oftentimes inaccurate electronic media interviews, comments, [and] photographs." Def's Mot. at 2. Furthermore, the motion references court filings that are classified as private and references the publication of private information of individuals involved in this case, allegedly in violation of law. Defendant does not provide any citations to the underlying motion to aid the court in identifying the potentially private information.

The court is sensitive to the amount of pre-trial publicity generated by this case, including an extensive amount of public commentary and inaccurate or conspiratorial descriptions of alleged evidence supporting or negating Defendant's guilt. A substantial amount of this pre-trial publicity is organized and memorialized into Defendant's motion. Because the references to pre-trial publicity are, by their very nature, already contained in the public arena, interests favoring closure are "greatly diminished." *State v. Allgier*, 2011 UT 47, ¶ 17. The public already has access to a majority of information contained in the motion.

Upon balancing the interests at play, the court determines that Defendant has not shown that the interests favoring closure outweigh the interests favoring access to the record, with the

exception of the potentially private information referenced in the motion to classify. The court orders Defendant to file a version of his motion to exclude cameras (docket 305) that redacts the private information referenced but not specifically cited in his motion to classify. The redacted version of the motion to exclude cameras must be filed with the court by the end of business on March 30, 2026. If no redacted motion is filed by that time, the court will re-classify docket 305 as public. If a redacted motion is filed, the court will maintain the private classification on docket 305.

Accordingly, Defendant's motion is granted in part and denied in part.

3. Defendant's Motion to Classify Reply (Dkt. 400)

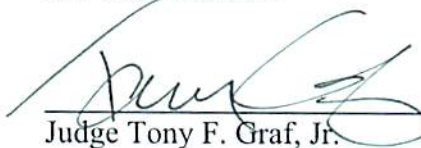
Defendant seeks to classify as private his reply memorandum in support of his motion to exclude cameras from the courtroom. Defendant argues that his reply memorandum should be private because it references portions of the Motion to Exclude Cameras, which he has also moved to classify as discussed in the ruling on docket 310. Defendant does not cite to any part of the reply memorandum that references potentially prejudicial information in the Motion to Exclude.

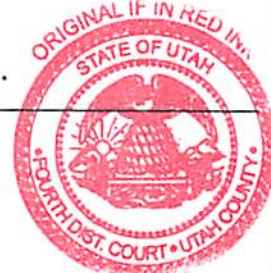
Based upon the record before it, the court concludes that Defendant has not provided a sufficient basis for the court to find that the interests favoring closure outweigh the interests favoring access to the reply memorandum.

Defendant's motion is respectfully denied.

Dated this 13th day of March, 2026.

BY THE COURT:


Judge Tony F. Graf, Jr.
District Court Judge



CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

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03/13/2026

/s/ TREENA HANSEN

Date: _____

Signature